

24NNCV01992 24NNCV01992

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#14 - GUOJIE ZHAO, et al. vs ROBERT CHIEN

The procedural requirements for a motion to amend have been satisfied here because the motion includes a proposed amended pleading and redline, and Yeh's declaration addresses the effect of the amendments, their asserted necessity, when the supporting facts were discovered, and why the request was not made earlier. (Yeh Decl., ¶¶ 3-9; Cal. Rules of Court, rule 3.1324.)

The Court does not minimize the timing of the request. The operative First Amended Cross-Complaint was filed on February 26, 2025, the motion was filed on July 9, 2026, and trial is set for September 15, 2026.

Even so, the record does not show the kind of prejudice that justifies denial. Fact discovery remains active, the PMQ/PMK deposition is still ongoing, and expert discovery is not yet complete.

The proposed new claims are represented to arise from the same construction-defect, abandonment, contract, and misrepresentation facts already at issue in the action. The proposed amended complaint adds two causes of action, adds Zhao to the disgorgement claim, and supplies a more detailed catalog of alleged defects.

Here, the Court finds it appropriate to permit the amendment and allow the parties to test the amended pleading through ordinary responsive procedures rather than to deny leave outright.

The Court agrees with the opposition that no prior answer should be deemed the operative response to the Second Amended Cross-Complaint. (Opp., p. 7.) Chien does not oppose preserving Cross-Defendants' right to respond by demurrer, motion to strike, or other pleading challenge. (Reply, p. 7.)

The Court declines to include a prospective ruling that the amendment may not be used in support of any future continuance request. (Opp., p. 2.) That issue is not properly decided on this motion.

The Court also declines to impose costs upon Cross-Complainant Chien. The opposition requested Chien to bear the reasonable costs if leave were granted, but the opposition does not set out any quantified or otherwise specific showing of such costs.

The motion is GRANTED. The amended Cross-Complaint shall be filed within 10 days.

Moving Party is to give notice.